**LUNGILE NDLOVU**

**Versus**

**ZIBUSISO NDLOVU**

HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO 21 November 2025 & 11 MAY 2026

**Chamber Application for Registration of a foreign judgment.**

*B. Mathonsi,* for the applicant
*P. Dube,* for the respondent

**MPOKISENG DUBE J**: The applicant brought forth an application for registration of a foreign judgment on the following grounds:

> "1. Applicant instituted proceedings of divorce and ancillary relief against the Respondent in case number BV21D12140 in the United Kingdom, as residents thereof, wherein the matter has been finalized.
>
> 2. The order granted under cover of BV21D12140 in the United Kingdom is extant, additionally the Respondent has not filed an appeal.
>
> 3. Applicant is entitled to apply to this Honourable Court for an Order for the registration of a foreign judgment for the reasons given in the Affidavit annexed hereto."

**FACTUAL BACKGROUND**

The parties are Zimbabwean citizens and were married on the 4th day of July 2003 in the United Kingdom in accordance with the laws of that jurisdiction. Prior to the parties relocating to and getting married in the United Kingdom, they had purchased a property known as the "Paddonhurst" property held under Deed of Transfer No. 3176/2001. The said property is registered in the individual name of the respondent. He claims to have solely purchased it before their marriage, while the applicant claims it was meant to be their home when they decided to come back to Zimbabwe or came to visit during the holidays. Sometime on or about the 15th of June 2021, the applicant herein instituted divorce proceedings in the United Kingdom against the respondent under cover of BV21D12140, wherein a final divorce decree was granted on the 24th day of October 2023. By then, both parties had been resident in the

United Kingdom since 2002, and they acquiesced to the jurisdiction of the court of the United Kingdom regarding the divorce proceedings. The judgment which the court delivered on the 24 day of October 2023 has the effect of finality. It is extant and the respondent has not filed an appeal. The respondent was present throughout the proceedings and took part up to the judgment.

When the application was served on the respondent, he first raised a preliminary point of *lis alibi pendens*. At the hearing of this matter he, however abandoned such point. His only contention became two fold viz:

a) That the judgment of the court in the United Kingdom offends against domestic laws in Zimbabwe.
b) That despite submitting himself to the jurisdiction of the said foreign court, the respondent protested the inclusion of his Zimbabwean property.

**Arguments for the applicant.**

*Mr Mathonsi,* for the applicant, first argued the point on jurisdiction. He argued that it is a well-established principle in our jurisdiction that a foreign judgment is not automatically enforceable until registered. That same is governed by the Civil Matters (Mutual Assistance) Act, [*Chapter 8.02*] at sections 3 and 25. Further, the said Act limits the registration of foreign judgments to designated countries, and the United Kingdom is not one of them according to that Act. He submitted that the case of *Gramara Enterprises (Pvt) Ltd & Anor v Minister of State for National Security Responsible for Lands, Land Reform & Resettlement & Anor* (HC 6396 of 2008) [2009] ZWHHC 50 (28 April 2009) is instructive wherein PATEL J, as he then was, held:

> "It follows that Chapter 8:02 does not purport to override or exclude the operation of any other law, including the common law, pertaining to the recognition and enforcement of foreign judgments. In effect, section 25 accords with the general rule of statutory interpretation that the common law cannot be ousted except by clear language or in express terms."

He interpreted the Gramara matter *supra* to lay down the following general principles under the common law:

a) A foreign judgment is not directly enforceable but constitutes a cause of action.

b) The court that pronounced the judgment should have had jurisdiction according to principles recognised by our law.
c) The judgment should be final and conclusive.
d) The judgment should not be contrary to public policy.
e) The judgment should not have been obtained through fraudulent means.
f) It should not involve that enforcement of a revenue or penal law of the foreign state.

*Mr Mathonsi* argued that only two of these requirements are contested in this matter i.e the jurisdictional competence of the U.K court and whether the judgment offends the public policy of Zimbabwe.

a. Jurisdictional Competence of the Family Court, Manchester United Kingdom.

He argued that the respondent admits to being domiciled in Zimbabwe, yet he is ordinarily resident in the United Kingdom. He was physically present in court throughout and submitted to its jurisdiction. The respondent accepts, of his own accord, that the UK court had jurisdiction over his person. He only contests the validity of the court's exercise of such jurisdiction over the property held in Zimbabwe. *Mr Mathonsi* argued that such contestation should be rejected as the UK Court had jurisdiction over the person of the respondent and consequently his property in Zimbabwe. He argued further that in any event in observance of the doctrine of conflict of laws the UK court made an order directing the person of the respondent to make a lump sum payment of US$ 25 000.00 only in default of which his Paddonhurst property would be liable for sale. He argued that the foreign court did not act directly on the landed property of the Respondent but just made an order upon the person of the Respondent to give an equitable satisfaction of its judgment. Based on that it was argued that the Family Court of Manchester, United Kingdom had jurisdiction to give an order now sought to be registered. Counsel made reference to the matter of *Tiiso Holdings v Zisco Steel* HH95-10.

b. Whether the Judgment Offends the Public Policy of Zimbabwe

*Mr Mathonsi* argued that in fact section 25 of the Matrimonial Causes Act of the United Kingdom is almost identical to section 12 of the Zimbabwean Matrimonial Causes Act. He argued that this was established in the case of *Makoni v Makoni* HH 222-23. He argued that for that reason it could not be said that the foreign judgment *in casu* offends against public policy

in Zimbabwe. He implored the court to reject opposing counsel's argument that in our jurisdiction all marriages are out of community of property hence each party should keep their assets acquired prior to their marriage as case law authorities have proven that the courts upon divorce can interfere with such based on section 7 and 12 of the Matrimonial Causes Act. He made reference to the cases of *Takapfuma v Takapfuma* 1994(2) ZLR 103 (SC)

**Arguments for the respondent**

*Mr P. Dube* for the respondent argued that registration of the foreign judgment is opposed on two fronts viz:

a) The Judgment offends against the domestic laws of Zimbabwe.
b) That the foreign court lacked jurisdiction over the Pardonnhurst property in Zimbabwe.

Counsel then expanded his arguments as follows:

a. Judgment offending the Domestic Laws of Zimbabwe.

*Mr Dube,* argued that the Manchester Family Law Court included in its decree property that is not part of the matrimonial estate. Further that in our jurisdiction marriages are all out of community of property in terms of the Married Persons Property Act. He contended that in the exercise of its discretionary powers the foreign court offended against the principles of equity in that it awarded to the applicant 100% share in a property described as the Sondelani Property and still awarded her 60% share of the Paddonhurst Property. On top of that the said court also awarded the applicant a Mercedes Benz motor vehicle as her sole and exclusive property.

Counsel argued that per section 26 of our Constitution each spouse is subject to equal protection of the law. He argued that for the foreign court to make such award was unjust given the background of the matter i.e that respondent purchased the Paddonnhurst property before their marriage was solemnised in the United Kingdom.

*Mr Dube,* argued that he admits the effects and application of sections 7 and 12 of the Matrimonial Causes Act but still insists that *in casu* he still maintains that the foreign court did

not act equitably. He argued that for that reason its judgment should not be registered in Zimbabwe.

b. Lack of Jurisdiction.

*Mr Dube,* argued that the respondent herein did not readily submit to the jurisdiction of the foreign court. That he protested the inclusion of his Zimbabwean property i.e the Paddonhurst house and the Mercedes vehicle.

Counsel argued that such inclusion was palpably unjust as the respondent remained with 40 % of his net assets.

He also made reference to the Gramara judgment *supra*.

**Replication by the applicant.**

*Mr Mathonsi,* replicated for the applicant briefly that an application for registration of a foreign judgment does not turn on the preferred outcome by the respondent. He argued further that at this stage it is inconsequential to attempt to submit an appeal guised as a notice of opposition to the registration of a foreign judgment.

**Analysis of the Facts**

From the facts of this matter, I am of the respectful view that the Respondent has a very bad defence, if any at all. He is contesting the inevitable. I say so for the following obvious reasons:

When the applicant instituted proceedings of divorce and ancillary relief against the respondent in case number BV21D12140 in the United Kingdom, both parties were residents of the United Kingdom. Respondent duly submitted himself to the jurisdiction of the Family Court of Manchester in the United Kingdom. He fully participated in the matter, which has been finalized. He accepts the decree of divorce. That means he accepts the jurisdictional powers of that court. Had the order of the court been in favour of property distribution, he wasn't going to be part of these proceedings. Now that things did not go his way, he is cherry picking. That is not a legally recognised basis to challenge the jurisdiction of a foreign court.

The order granted under cover of BV21D12140 in the United Kingdom is extant. The respondent has not filed an appeal. He can not possibly seek to appeal or review that extant order in this jurisdiction. His fate is sealed.

An applicant is entitled to apply to this Honourable Court for an Order for the registration of a foreign judgment for it to be enforceable in Zimbabwe. There is no good cause why such judgment should not be registered.

**THE LAW**

The Zimbabwean Property distribution regime post-divorce.

Section 7 of the Matrimonial Causes Act [*Chapter 5:13*] reads as follows:

7. Division of assets and maintenance orders

(1) Subject to this section, in granting a decree of divorce, judicial separation or nullity of marriage, or at any time thereafter, an appropriate court may make an order with regard to— (a) the division, apportionment or distribution of the assets of the spouses, including an order that any asset be transferred from one spouse to the other;

……

(4) In making an order in terms of subsection (1) an appropriate court shall have regard to all the circumstances of the case, including the following—

(a) the income-earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;

……

(g) the duration of the marriage;

and in so doing the court shall endeavour as far as is reasonable and practicable and, having regard to their conduct, is just to do so, to place the spouses and children in the position they would have been in had a normal marriage relationship continued between the spouses. (My own underlining for emphasis)

In the present case, the foreign court applied the same standard. Having regard to section 7 of our Matrimonial Causes Act, even if the matter were to be dealt with locally, the outcome was unlikely to be different. In any event, this court is not sitting as a review or appellate court. The question is, does the foreign judgment offend the domestic or municipal

public policy? I am persuaded it does not. I have perused through the Gramara judgment per Patel J as he then was, and I am satisfied that quite unlike the SADC tribunal's order, which was at odds with the Zimbabwean domestic land redistribution policy same cannot be said here.

The current property distribution regime in our jurisdiction is enunciated in the cases such as the case of *Usayi v Usayi* SC 22-24 where Mathonsi JA *et al* held as follows:

> "It is significant that s 7 does not recognize the spectre of registration of property as an important consideration in the division except that s 7 (3) protects certain types of property from the long reach of the court. The property forming the subject of this appeal does not fall under the exclusionary provisions of subs (3). Yet subs (1) specifically empowers the court, where appropriate, to order the transfer of property from one spouse to the other. Having said that, it becomes apparent that what the court a quo regarded as a matter of life and death, the registration of title, was only a footnote in the broader scheme of things."

I therefore do not agree with counsel for the respondent that the order of the Manchester Family law Court is palpably unjust and inequitable.

While discussing the implications of sec 7 in the case of *Lock v Lock* SC 51-20 at p 8 it was held:

> "The import of the above section was made clear in Gonye (*supra*) where the following was stated: 'It is important to note that a court has an extremely wide discretion to exercise regarding the granting of an order for the division, apportionment or distribution of the assets of the spouses in divorce proceedings. The terms used are the 'assets of the spouses' and not matrimonial property. It is important to bear in mind the concept used, because the adoption of the concept matrimonial property often leads to the erroneous view that assets acquired by one before marriage or when the parties are separated should be excluded from the division, apportionment or distribution exercise. The concept the assets of the spouses is clearly intended to have assets owned by the spouses individually (his or hers) or jointly (theirs) at the time of the dissolution of the marriage by the court considered when an order is made with regard to the division, apportionment or distribution of such assets. To hold, as the court a quo did, that as a matter of principle assets acquired by a spouse during the period of separation are to be excluded from the division, apportionment or distribution a court is required to make under s 7 (1) of the Act is to introduce an unnecessary fetter to a very broad discretion, on the proper exercise of which the rights of the parties depend." (Cited with approval in the case of *Usayi v Usayi* supra)

Public Policy

In the Gramara matter *supra* I am particularly drawn to these apt words regarding the public policy argument.

> "As already stated above, a foreign judgment cannot be recognised and enforced if it is contrary to public policy. As is succinctly put in Joubert (op. cit.) at para. 425:
>
> "…….. a foreign judgment will not be recognised or enforced if it is in conflict with an overriding statute, if its terms conflict with public policy or if it was obtained without observance of the principles of natural justice."
>
> What constitutes public policy in any given country is a matter that eludes precise definition. The notion is clearly not immutable and must perforce vary with time, place and circumstance, in tandem with changing social mores. Antecedent case authorities are obviously highly persuasive but may not always be germane or decisive."

I have perused through the entire Gramara judgment per Patel J (as he then was) and I am satisfied that quite unlike the SADC tribunal's order which was at odds with the Zimbabwean domestic agrarian policy same cannot be said here.

Jurisdiction

In the case of *Tiiso Holdings v Zimbabwe Iron and Steel Co*. *supra* it was held as follows:

> "A foreign court has jurisdiction to entertain an action for a judgment sounding in money against a natural person if, at the time of the commencement of the action, the defendant is physically present in the state to which the court belongs or is domiciled or resident within that State or has submitted to the jurisdiction of that court. According to Pollak, there are no other grounds for jurisdiction."

*In casu*, the applicant and the respondent relocated to the United Kingdom sometime in 2002 and sought asylum there. The parties were subsequently married on the 4th day of July 2003 in accordance with the laws of the United Kingdom. Both parties have lived in the United Kingdom throughout their marriage, and both have attained British citizenship. Therefore, in June 2021, when the applicant filed for divorce under the cover of BV21D12140, the Family Court at Manchester, UK established jurisdiction by virtue of section 2 of the Domicile and Matrimonial Proceedings Act 1973 of the United Kingdom, on the premise that both parties to the marriage are habitually resident in the United Kingdom.

In the matter also cited by counsel for the applicant, *Makoni v Makoni* the court had this to say;

> "The Matrimonial Causes Act [*Chapter 5:13*] in s 12 provides as follows:
>
> '12(1) An appropriate court may recognize the validity of any decree or an order of divorce, judicial separation or a nullity of marriage made in any country in any case in which the husband was not domiciled in that country if —
>
> (a) it is satisfied that the law of that country contains provisions which correspond substantially to the relevant provisions of section three or
>
> (b) the President has by proclamation in a Statutory Instrument declared that the law of that country contains provisions which correspond substantially to the relevant provisions of section three
>
> (2) No proclamation shall be issued in terms of paragraph(b) of subsection (1) unless the President is satisfied that adequate provision is made under the law of the country concerned for the recognition by the courts of that country of the decree and orders made under section three in any case in which the husband is not domiciled in Zimbabwe.

In the present matter the respondent accepts that he is domiciled in Zimbabwe. The provisions of the law applied in the distribution of assets of the parties substantially corresponds to the relevant provisions of the Matrimonial Causes Act as demonstrated above.

**Conclusion**

I am satisfied that the Family Court in Manchester, United Kingdom properly exercised jurisdiction over the respondent and consequently his assets in Zimbabwe. I am further satisfied that the respondent failed to prove that the judgment of that court offends the public policy of our jurisdiction.

**DISPOSITION**

Having said the above the applicant's prayer succeeds in the result the following order is made:

> I. The distribution of the matrimonial estate of the parties by the Family Court at Manchester, United Kingdom in the decree absolute dated the 24™ of October 2023 as read with the decree nisi under cover of BV21D12140 to the extent that the respondent Husband shall pay to the applicant Wife a lump sum of US$25 000.00 (twenty-five

thousand US Dollars) by 4pm, 13 February 2024 be hereby confirmed and registered as an order of this Court.

2. The applicant shall provide a bank account to which the above-mentioned lump sum shall be deposited.

3. In the event that the respondent fails to buy out the applicant within six (6) months from the date of this order, the property known as number 19 Britton Avenue, Paddonhurst, Bulawayo shall be so] to best advantage by an Estate Agent mutually agreed upon by the parties, failing which the Registrar of the High Court is directed to appoint an independent Estate Agent,

4. The net proceeds of the sale shall be paid to the parties as per the order granted under cover of BD21D12140.

5. The parties shall pay all statutory and other Costs associated with the sale in proportions provided under cover of BD21D12140.

6. In the event of such a sale of the above-mentioned immovable property as provided in paragraph (3) above, the respondent shall sign all necessary documents for the sale and transfer of the above-mentioned property, failing which the Deputy Sheriff shall sign on behalf of the respondent.

7. Each party bears their own costs.

*Webb Low & Barry, Incorporating Ben Barron and Partners*, applicant's legal practitioners
*Cheda and Cheda Associates*, respondent's legal practitioners